		The motion to strike is granted. There are no specific facts showing Defendant acted with intentional, willful, or reckless disregard for the safety of others as required for malice. Should Plaintiff wish to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve it within 15 days of service of notice of ruling. Defendant to give notice.
6	Karasu vs. Beylem	**OFF CALENDAR**
7	Sykes vs. Lyft, Inc. the Estate of Brandon Blackthorne. Deceased	**TENTATIVE RULING:** **<u>Motion to Compel Arbitration</u>** Defendant Lyft, Inc., moves to compel arbitration of Plaintiffs George Allen Sykes, individually and as successor in interest to the Etate of Chandler Sykes, and Heather Hughes's survival claim. For the following reasons, the motion is GRANTED. **<u>Applicability of the FAA</u>** The right to arbitration depends upon contract, and thus, a motion to compel arbitration is akin to a suit in equity seeking specific performance of that contract. (*See Little v. Pullman* (2013) 219 Cal.App.4th 558, 565.) The Federal Arbitration Act ("FAA"), which includes both procedural and substantive provisions, governs agreements involving interstate commerce. The FAA provides that written arbitration agreements "shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract." (9 U.S.C., § 2.) The parties here do not dispute that the agreement is governed by the FAA's substantive rules. **<u>Standard to Compel Arbitration Pursuant to the FAA</u>** On a motion to compel arbitration under the FAA, the court's role is limited to deciding: "(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the

dispute.” (*Brennan v. Opus Bank* (9th Cir. 2015) 796 F.3d 1125, 1130.)

When deciding whether a valid arbitration agreement exists, courts generally apply “ordinary state-law principles that govern the formation of contracts.” (*First Options of Chicago, Inc. v. Kaplan* (1995) 514 U.S. 938, 944.) Thus, the FAA permits arbitration agreements to be invalidated by “‘generally applicable contract defenses, such as fraud, duress, or unconscionability.’” (*AT & T Mobility LLC v. Concepcion*, *supra*, 563 U.S. at p. 339, quoting *Doctor's Associates, Inc. v. Casarotto* (1996) 517 U.S. 681, 687.)

The party seeking to compel arbitration bears an initial burden to make a *prima facie* showing the claims asserted in the complaint are covered by a valid agreement to arbitrate. (*Molecular Analytical Systems v. Ciphergen Biosystems, Inc.* (2010) 186 Cal.App.4th 696, 710-711.) Then, “the party resisting arbitration bears the burden of proving that the claims at issue are unsuitable for arbitration” or that a contract to enforcement exists. (*See Green Tree Fin. Corp. v. Randolph* (2000) 531 U.S. 79, 91.)

Evidence and Scope of Arbitration Agreement

A party moving to compel arbitration bears an initial burden of producing “prima facie evidence of a written agreement to arbitrate the controversy.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165–166.) If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. (See *Gamboa*, 72 Cal.App.5th at 165-166.)

Here, Defendant submits evidence Decedent Chandler Sykes entered into an arbitration agreement with Defendant Lyft, Inc. (Sniegowski Decl. ¶ 13, Exs. 1-2.) Plaintiffs do not dispute the existence, validity, or authenticity of the arbitration provision. (*See generally* Opp.)

The claims brought by Decedent’s Estate fall within the broad scope of the arbitration agreement, as the arbitration agreement covers in relevant part: “any dispute, claim or controversy, whether based on past, present, or future events, arising out of or relating to: this Agreement.” (Sniegowski Decl., Ex. 2 at p. 23; *see Rice v. Downs* (2016) 248 Cal.App.4th 175, 186, *as modified on denial of reh'g (June 23, 2016), as modified (June 28, 2016)* [holding “broad”

		arbitration agreements cover torts and claims where the allegations "touch matters" covered by the contract].) **<u>Defense to Enforcement</u>** Plaintiffs' opposition does not argue any contract defense (e.g., unconscionability) exists and, therefore, waives the issue. (*See In re Marriage of Schroeder* (1987) 192 Cal.App.3d 1154, 1164 [noting a brief should contain a legal argument with citation of authorities on the points made, and if not furnished on a particular point, the contention is waived].) **<u>Court's Discretion to Not Enforce the Arbitration Agreement or to Stay Arbitration</u>** If the court finds a valid arbitration agreement covers the parties' dispute and the FAA's procedural rules apply, the court is without discretion to deny the motion and must compel arbitration. (9 U.S.C. § 4; *see Dean Witter Reynolds, Inc. v. Byrd* (1985) 470 U.S. 213, 218.) The California Arbitration Act (the "CAA"), on the other hand, provides the court discretion to refuse to enforce an arbitration agreement or stay arbitration in circumstances where there is a possibility of conflicting rulings on a common issue of law or fact. (*See* Code Civ. Proc., § 1281.2(c).) Plaintiffs argue that the court should exercise its discretion under the CAA to refuse to enforce the arbitration agreement or, in the alternative, stay the proceeding on arbitrable claims until after the trial on Plaintiff's litigated claims. Defendant argues that the CAA procedural rules do not provide an "escape hatch" for Plaintiffs to avoid arbitration because the Arbitration Agreement provides the FAA applies, the arbitrator has sole authority to determine issues of arbitrability, and even if the FAA did not apply, then the Delaware choice-of-law provision would govern. Although the CAA's procedural rules apply by default in cases brought in California courts, the FAA's procedural rules apply where there is "an express provision in the arbitration agreement" providing for the federal procedural rules to apply. (*See Avila v. Southern California Specialty Care, Inc.* (2018) 20 Cal.App.5th 835, 840-841, citing *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 922 [even where agreement specifies FAA governs any disputes, CAA governs procedures] and others; *see also Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 582 [holding the CAA's